



**KENYA NATIONAL COMMISSION ON
HUMAN RIGHTS**

**Report
of the
Kenya National Commission on Human
Rights on the Development
of a Framework
for
Reparations for Victims of Violations
of Human Rights, Including from
Demonstrations And Public Protests**



Submitted to:

His Excellency
Hon. William Samoei Ruto, PhD., C.G.H.,
President of the Republic of Kenya
and Commander-in-Chief of the Defence Forces

Pursuant to Article 254 (2) of the Constitution of Kenya and Presidential Proclamation No. 1 of 2026
(Gazette Notice No. 3114 of 6th March 2026)

June, 2026

**Report
of the
Kenya National Commission on Human
Rights on the Development
of a Framework
for
Reparations for Victims of Violations
of Human Rights, Including from
Demonstrations And Public Protests**

© May 2026, Kenya National Commission on Human Rights (KNCHR)

ISBN: 978-9914-740-40-0

Except where otherwise noted, all original content in this document is licensed under a Creative Commons license. All users must attribute the contents of this document back to this report and refrain from suggesting that we endorse their use of the work. You are free to share this work as long as it is for non-commercial purposes.

To view a copy of this license, visit <http://creativecommons.org/licenses/by-nc-nd/4.0/> Published by:

Kenya National Commission on Human Rights 1st Floor, CVS Plaza, Lenana Road

P.O. Box 74359-00200

Nairobi, Kenya

Tel: 254-20-2717908 /2717256/2712664

Email: haki@knchr.org Website: www.knchr.org

KNCHR would appreciate receiving a copy of any materials in which information from this report is used.

5th May 2026

**His Excellency, Hon. William Samoei Ruto, PhD, CGH
President of the Republic of Kenya and
Commander-in-Chief of the Defence Forces**

Nairobi.

Your Excellency,

RE: Framework For Reparations For Victims of Violations of Human Rights, Including From Demonstrations and Public Protests

Pursuant to Presidential Proclamation No. 1 of 2026, and in compliance with the orders of the High Court of Kenya at Kerugoya in Constitutional Petitions Nos. E10, E11 and E14 of 2025 (Consolidated), I have the honour to respectfully submit the *Report on Reparations for Victims of Human Rights Violations, Including Those Arising From Demonstrations and Public Protests*.

Your Excellency, The Report is submitted together with the *Reparations Guidelines* and a provisional list of verified victims for whom the Report and Guidelines have been prepared.

Please accept, Your Excellency, the assurances of our highest consideration.

Claris Ogangah

Chairperson

Kenya National Commission on Human Rights

FOREWORD

The Kenya National Commission on Human Rights (*The Commission*) acknowledges His Excellency Hon. William Samoei Ruto, PhD, CGH, President of the Republic of Kenya for the decisive leadership and commitment demonstrated in having a national reparations and compensation framework for victims of human rights violations including victims of protests and demonstrations. The Commission further recognises the role played by the late Rt. Hon. Raila Odinga who consistently advocated for reparations for victims of human rights violations. The move to address human rights violations is a critical component in confronting historical socio-economic and political challenges that have continued to face the country.

Successive Governments have received reports of human rights violations including through the Truth Justice and Reconciliation Report that documented years of violations and including through establishment of a fund. These reports and their findings remain largely unimplemented, with victims left to endure the consequences of harm and suffering without remedy.

The Commission acknowledges that, this is the first time in the history of Kenya that the government has on its own initiated this reparations process signifying a commitment to transition from documentation to redress, and from acknowledgment to reforms to ensure accountability.

The report herein captures stories of men and women injured or killed while exercising rights guaranteed under the Constitution and whose lives have been marked by repeated cycles of violence, neglect, and unfulfilled promises, hoping that with each successive government they would get reparations and/or justice.

The decision by H.E. the President to require this Framework reflects an understanding that the State's obligation to victims demands structured, principled, and time-bound action grounded in law, policy, and institutional commitment. The Commission accepted this responsibility with humility and resolve.

Even though this work was undertaken under significant time constraints, the unwavering dedication of the Commission staff who worked beyond ordinary limits to receive, register, verify, and document thousands of claims across the country, ensured that urgency did not compromise rigor, fairness, or credibility. The Commission records this commitment with profound appreciation and pride.

The Commission equally recognises the indispensable contribution of State and Non-State Actors whose support ensured that victims in most parts of the country were reached and heard. The Reparations Framework submitted alongside this Report reflects this commitment, and solidarity as much as it does that of the Commission.

The Commission also acknowledges the victims whose experiences form the foundation of every finding in this Report, and who were relentless in seeking justice and accountability for violations they suffered. The Commission recognises you and commits to continue to promote and protect the rights of all Kenyans.

Lastly, the Commission notes that reparations cannot be implemented in isolation and calls upon other government organs including Parliament to enact the proposed Reparations Law without delay, upon the National Treasury to allocate and release the necessary resources for implementation, and upon all State institutions to treat this Framework as a binding national obligation requiring immediate and sustained execution.

Claris Ogangah

Chairperson

Kenya National Commission on Human Rights

ACKNOWLEDGEMENTS

The Kenya National Commission on Human Rights (KNCHR) records its profound gratitude to all those whose dedication and resolve made this Report and the accompanying Reparations Framework possible. This work is the outcome of sustained collective effort spanning victims, petitioners, human rights defenders, civil society organisations, media institutions, and State and non-State actors alike.

The Commission honours, above all, the victims of human rights violations. It is their experiences that underpin every finding and every recommendation contained herein. That they came forward to recount the most painful chapters of their lives is an act of extraordinary courage, one that the Commission recognises with the deepest respect and solemnity.

The Commission records its sincere appreciation to its strategic stakeholders, institutional partners, and Government Ministries, Departments, and Agencies, whose networks, advocacy, and willingness to share institutional information were indispensable to the development of a Reparations Framework that is principled and practicable.

The Commission equally records its profound gratitude to every member of its Secretariat, the Technical Team, and the Commissioners, who laboured beyond ordinary institutional demands within the timelines prescribed in the Presidential Proclamation. The Commission's regional offices in Mombasa, Kisumu, Nyahururu, Kitale, Wajir, Isiolo, Garissa, and Kajiado ensured that victims outside the capital were not marginalised in this process.

Finally, the Commission acknowledges the stewardship of its Chairperson, Claris Ogangah, and the collective responsibility exercised by the full body of Commissioners, whose strategic direction and unwavering commitment to constitutional independence and victim-centered principles have been the cornerstone upon which this Report and the Reparations Framework stand.

TABLE OF CONTENTS

FOREWORD	iv
ACKNOWLEDGEMENTS	vi
EXECUTIVE SUMMARY	viii
CHAPTER ONE	1
INTRODUCTION	1
1.1 Background and Historical Context.....	1
1.2 Terms of Reference	2
1.3 Mandate of the Commission.....	3
CHAPTER TWO	4
LEGAL FRAMEWORK FOR REPARATIONS.....	4
2.1 Introduction.....	4
2.2 International Human Rights Frameworks	4
2.3 National Legal Framework.....	8
CHAPTER THREE.....	13
DEVELOPMENT OF THE REPARATIONS GUIDELINES.....	13
3.1 Introduction.....	13
3.2 Conceptualization of the Reparations Framework	13
3.3 Stakeholders Consultation	14
3.4 Drafting the Reparation Framework.....	14
3.5 Public Participation	14
3.6 Publication and Publicization	14
CHAPTER FOUR.....	15
COMPLAINTS/CLAIMS PROCESSING AND VICTIM IDENTIFICATION	15
4.1 Introduction.....	15
4.2 Documentation: Scope and Process.....	15
4.3 Verification Process.....	16
4.4 Findings by Category of Violation	17
CHAPTER FIVE	19
RECOMMENDATIONS, CHALLENGES AND CONCLUSION	19
5.1 Introduction.....	19
5.2 Recommendations	19
5.3 Challenges.....	23
5.4 Conclusion.....	25
ANNEXURES.....	26
1. Annex A: Kenya National Commission on Human Rights' Reparations Guidelines, 2026.....	26

EXECUTIVE SUMMARY



The Kenya National Commission on Human Rights derives its mandate from Articles 59 and 249 of the Constitution, which collectively require the Commission to promote constitutionalism and to protect, respect, and ensure the observance of human rights and fundamental freedoms across all sectors of life.

This Report and Reparations Framework is submitted to His Excellency, Hon. William Samoei Ruto, PhD, C.G.H, the President of the Republic of Kenya and Commander-In-Chief of the Defence Forces, pursuant to Presidential Proclamation No. 1 of 2026 and in compliance with the orders of the High Court of Kenya at Kerugoya in Constitutional Petitions Nos. E10, E11, and E14 of 2025 (Consolidated). In accordance with Article 254(2) of the Constitution, the President required the Commission to develop a comprehensive framework for reparations for victims of human rights violations, including those arising from demonstrations and public protests. The Framework operationalizes the right to an effective remedy by establishing modalities for restitution, compensation, rehabilitation, satisfaction, and guarantees of non-repetition.

The Report identifies critical structural deficits within Kenya's human rights protection architecture. These include the absence of a comprehensive and institutionalized reparations regime; the persistent non-implementation of recommendations arising from prior Commissions of inquiry, notably the Truth, Justice and Reconciliation Commission (TJRC); and the lack of an adequate legislative framework to give full effect to the right to assemble, demonstrate, picket, and petition under Article 37 of the Constitution. In the absence of coordinated reform across these areas, reparations risk remaining *ad hoc* and reactive, rather than forming part of a broader transitional justice and prevention framework.

In developing the Reparations Framework, the Commission adopted a participatory, evidence-based, and victim-centered methodology. This entailed: (i) a comprehensive review of international and comparative standards and practices on reparations; (ii) structured consultations with victims, State and non-State actors, civil society organisations, and the Victims and Survivors' Network; (iii) the receipt, assessment, and verification of claims; and (iv) public participation and validation processes to ensure legitimacy and inclusivity.

The Commission documented **1,815** claims and received **1,022** from the Independent Policing Oversight Authority. Through this process, the Commission has so far verified and obtained consent from a total of **1101** victims across six categories of violations: the right to life (**245** victims); sexual violence (**75** victims), freedom from torture (**135** victims), freedom and security of the person (**473** victims); right to property (**138** victims) and enforced disappearance (**35** victims). The verification process was guided by the “*reasonable basis to believe*” evidentiary standard, consistent with international human rights practice.

The Commission noted and documented cases human rights violations where domestic Courts have awarded compensation but the payments have not been affected.

The Report proposes a comprehensive five-pillar reparations framework aligned with the United Nations Basic Principles and Guidelines on the Right to a Remedy and Reparation. The pillars comprise: *restitution*, aimed at restoring victims to their original situation where possible; *compensation*, to address both material and moral harm; *rehabilitation*, including access to medical, psychological, and social services; *satisfaction*, encompassing measures such as official acknowledgements, apologies, memorialization, and truth-telling; and *guarantees of non-repetition*, targeting the structural and institutional drivers of violations through legal and policy reform, accountability, and strengthened oversight.

To ensure effective implementation, the Commission recommends the enactment of a Reparations Act to establish a permanent, ring-fenced Reparations Fund and an independent institution, supported by a National Reparations Policy. The Commission should serve as the lead oversight institution with a mandate for coordination across relevant State agencies. The Report further calls for sustained budgetary allocation by the National Treasury, prioritization of the most vulnerable victims in the reparations process, expedited investigations into protest-related violations, prosecution of perpetrators, and the review and where appropriate withdrawal of charges against protesters and human rights defenders arrested and charged in circumstances arising from the lawful exercise of rights under Article 37 of the Constitution. It also urges the issuance of a formal public apology and the adoption of robust guarantees of non-repetition, including comprehensive legislation to operationalize Article 37 and the reform of the Public Order Act to ensure conformity with constitutional and international human rights principles and standards.

Reparations constitute binding legal obligations of the State under domestic, regional, and international law, including the Constitution and the African Charter on Human and Peoples’ Rights, as interpreted through relevant jurisprudence.

The Commission calls upon the Executive and Parliament to take prompt, coordinated, and decisive action to implement these recommendations. The victims identified in this Report-including survivors of torture, families of the forcibly disappeared, and individuals injured or killed in the exercise of their constitutional rights are entitled to full and effective justice, grounded in accountability, dignity, and the rule of law.

CHAPTER ONE

INTRODUCTION

1.1 Background and Historical Context

Kenya's history is marked by periods of systemic and gross human rights violations and historical injustices, including political repression, unlawful detention, torture, enforced disappearances, and violations associated with electoral processes and public demonstrations. The Truth, Justice and Reconciliation Commission (TJRC) Report (2013) documented these patterns and underscored the need for comprehensive measures to address past injustices, restore the dignity of victims, and prevent recurrence. While the TJRC process provided a critical foundation for truth-telling and national reflection,¹ significant gaps remain in the implementation of its recommendations, particularly in relation to reparations and institutional reforms.

The promulgation of the Constitution marked a transformative moment in the country's governance and human rights framework. The Constitution establishes a progressive Bill of Rights, affirming Kenya's commitment to democratic governance, the rule of law, and the protection of fundamental freedoms and guarantees every person the right to dignity, freedom, and security of the person, as well as the right to a remedy for any violation of these rights. Article 21(1) of the Constitution obligates the State to take all necessary measures to respect, promote, protect, and fulfil these rights and fundamental freedoms. Whereas mechanisms for redress exist, they remain fragmented, often inaccessible, and insufficient to provide reparations and address the scale and complexity of harm experienced by victims.

Comparative experience from other jurisdictions demonstrates that effective responses to gross and systemic human rights violations require reparation programs that are structured, adequately resourced, and firmly anchored in law.

In South Africa, the Truth and Reconciliation Commission recommended a framework encompassing interim financial assistance, community rehabilitation, and symbolic reparations administered through a dedicated fund, although implementation was significantly constrained by delays and insufficient financial allocation.²

In Peru a comprehensive reparations program was adopted, integrating symbolic measures, individual and collective compensation, and restoration of rights, with particular emphasis on vulnerable and historically marginalised groups.³

1 See pages 63-69 of the TJRC Report, Volume 4

2 See Paragraphs 56-57 of the TJRC Report, Volume 4

3 See "Promotion of truth, justice, reparation and guarantees of non-recurrence: Report of the Special Rapporteur on the promotion of truth, justice, reparation and guarantees of non-recurrence" available at: <https://docs.un.org/en/A/HRC/42/45>

See also: Reparations in Peru: 15 Years of delivering redress, September 2019, available at: www.peru-report-eng

Colombia established a robust statutory framework through Law 1448 of 2011, guaranteeing victims' rights to truth, justice, and reparation, supported by dedicated institutional mechanism and clearly defined legal entitlements.

Similarly, The Gambia implemented a victim-centered reparations programme prioritizing survivors of sexual violence and other vulnerable groups through financial awards, medical support, and community rehabilitation. In contrast, experiences in Timor-Leste and Liberia illustrate the consequences of weak institutional follow-through, where the absence of dedicated legislation, implementation bodies, and sustained funding resulted in fragmented or unrealized reparations efforts.⁴

Morocco on the other hand provides an example of a State-led programme with direct reparations awards and collective development initiatives, while Argentina demonstrates the value of sustained, multi-decade legislative action in delivering comprehensive reparations across successive legal frameworks.⁵

These comparative experiences highlight several consistent principles: the necessity of a clear legal framework, the importance of dedicated and sustainable funding, the centrality of victim participation, and the need for institutional mechanisms capable of ensuring long-term implementation.

Against this background, the development of Kenya's Reparations Framework is both timely and necessary. It seeks to bridge the gap between constitutional guarantees and their practical realization by establishing structured, accessible, and victim-centered mechanisms for redress. The framework aligns with the Presidents' commitment, the recommendations of the TJRC and reinforces the State's obligation to ensure accountability, access to justice, and the protection of fundamental rights through comprehensive reparations that encompass both individual and collective measures.

It is within this legal and historical context that this Report on the development of a comprehensive and effective reparations regime in Kenya is presented.

1.2 Terms of Reference

On 6th March, 2026, H.E. the President of the Republic of Kenya, through a Presidential Proclamation No. 1 of 2026 communicated *vide* Gazette Notice No. 3114 and in exercise of the authority under Article 252 (4) of the Constitution required the Commission to undertake the following:

- ➔ Develop and submit a framework to guide the provision of compensation and reparations to victims of violations of human rights, including those arising from demonstrations and public protests; and
- ➔ Submit, publish and publicize a report containing the said framework within sixty (60) days of the date of this Proclamation, in accordance with the Constitution and the applicable law.

The Presidential Proclamation was premised under Article 131(2) (e) of the Constitution which mandates the Head of State to ensure the protection of human rights and fundamental freedoms and the rule of law in conformity with the Constitution and Kenya's obligations under regional and international human rights treaties, conventions, and other applicable legal instruments.

⁴ See: <https://www.ohchr.org/en/meeting-summaries/2024/07/human-rights-committee-adopts-reports-follow-concluding-observations>

⁵ See "Promotion of truth, justice, reparation and guarantees of non-recurrence: Report of the Special Rapporteur on the promotion of truth, justice, reparation and guarantees of non-recurrence" available at: <https://docs.un.org/en/A/HRC/42/45>

Further, the Presidential Proclamation followed the High Court of Kenya at Kerugoya in Constitutional Petitions Nos. E10, E11, and E14 of 2025 (Consolidated) that directed that the development of a suitable framework for compensation and reparations for victims of violations of human rights be undertaken by the Kenya National Commission on Human Rights in line with its constitutional mandate.

Pursuant to Article 254(2) of the Constitution, the Commission presents this Report on the development of a structured and comprehensive reparations framework to guide the identification, verification, and redress for victims of human rights violations.

1.3 Mandate of the Commission

The Kenya National Commission on Human Rights (*The Commission*) is established under Article 59 of the Constitution of Kenya as an independent constitutional Commission and the principal organ of the State responsible for promoting and protecting human rights and fundamental freedoms. Its constitutional status is further affirmed under Article 249(2), which requires constitutional Commissions to (a) *protect the sovereignty of the people*; (b) *secure the observance by all State organs of democratic values and principles*; and (c) *promote constitutionalism, and to be subject only to the Constitution and the law*. The Commission's functions are elaborated in Articles 59(2) of the Constitution and in Section 8 of the Kenya National Commission on Human Rights Act, Cap. 71 (*the KNCHR Act*).

In fulfilling the requirements of the Presidential Proclamation, the Commission invoked its four-fold mandate relevant to the task. *First*, the Commission is mandated to monitor, investigate and report on the observance of human rights in all spheres of life in the Republic (Section 8(c) of the KNCHR Act). *Second*, it is empowered to receive and investigate complaints about alleged abuses of human rights and to take steps to secure appropriate redress where human rights have been violated (Section 8(d)). *Third*, it may, on its own initiative or on the basis of complaints, investigate or research matters in respect of human rights and make recommendations to improve the functioning of State organs (Section 8(e)). *Fourth*, and most directly, the Commission serves as the principal organ of the State in ensuring compliance with obligations under international and regional treaties and conventions relating to human rights (Section 8(f)).

These four functions collectively equip the Commission with the legislative authority, the remedial competence, and the human rights treaty-compliance role necessary for the development of a comprehensive reparations' framework.

CHAPTER TWO

LEGAL FRAMEWORK FOR REPARATIONS

2.1 Introduction

The Commission notes that while Kenya does not have national legislation specifically dedicated to reparations, it is a signatory to various international and regional human rights instruments that oblige the State to provide effective remedies and reparations to victims of human rights violations.

The Commission undertook a comprehensive review of the applicable constitutional and legislative frameworks, relevant regional and international human rights instruments, and relevant jurisprudence. This analysis provided the substantive and normative foundation for the development of the Reparations Framework.

2.2 International Human Rights Frameworks

The Constitution fundamentally reconfigures the status of regional and international human rights instruments within domestic legal system. Pursuant to Articles 2(5) and 2(6) of the Constitution, the general rules of international law form part of the law of Kenya, and any treaty or convention ratified by Kenya is incorporated into and forms part of the laws of Kenya. Consequently, the international human rights instruments to which Kenya is a State Party impose binding obligations upon the State to respect, protect, promote, and fulfil human rights and fundamental freedoms as well as to ensure effective remedies where violations occur. These instruments provide the normative and the legal foundation for the right to a remedy and reparation as outlined in the table below.

Human Rights Instrument	Relevant Articles and Provisions
The International Covenant on Civil and Political Rights (ICCPR)	Article 2(3) of this Covenant imposes a binding obligation upon each State Party to ensure that any person whose rights or freedoms recognised under the Covenant have been violated has access to an effective remedy, notwithstanding that the violation has been committed by persons acting in an official capacity. The Human Rights Committee, in General Comment No. 31(80), The Nature of the General Legal Obligation Imposed on States Parties to the Covenant, clarified that obligation extends beyond mere acknowledgement of a violation and requires States to provide adequate, effective and enforceable reparation to individuals whose Covenant rights have been violated. The Committee emphasizes that, in the absence of appropriate reparation, the State cannot be said to have fully discharged its duty to provide an effective remedy under the Covenant.
The Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT)	Article 14 of the Convention imposes a clear obligation on each State Party to ensure in its domestic legal system that every victim of torture has access to redress and has an enforceable right to fair, adequate and effective compensation, including the means for full rehabilitation as possible. The Committee against Torture has consistently affirmed that this obligation requires States parties to establish accessible and effective remedies for victims of torture and to guarantee that compensation is provided promptly, is commensurate with the gravity of the harm suffered and is capable of effective enforcement in practice.
The International Convention for the Protection of All Persons from Enforced Disappearance (ICPPED)	Kenya signed the ICPPED in 2007 but has not yet ratified it. Article 24 of the Convention affirms the rights of victims of enforced disappearance to obtain full and effective reparation, including material and moral damages and measures of restitution, rehabilitation, satisfaction, and guarantees of non-repetition. The Truth, Justice and Reconciliation Commission expressly recommended that Kenya ratify this Convention within two years of the issuance of its report, ⁶ however this recommendation remains unimplemented to date.

Regional Human Rights Frameworks

Regional human rights instruments constitute the African continental treaties and charters ratified by Kenya. They form part of the law of Kenya by virtue of Article 2(5) and 2(6) of the Constitution, and equally oblige the State to respect, protect, promote, and fulfil human rights and to provide effective remedies when violations occur.

⁶ The Report was submitted on 21st May 2013

Human Rights Instrument	Relevant Articles and Provisions
The African Charter on Human and Peoples' Rights	Article 7(1)(a) of the African Charter guarantees the right of every individual to an appeal to competent national organs against acts that violate fundamental rights and freedoms. The African Commission on Human and Peoples' Rights has consistently interpreted this provision read together with the broader protective framework of the Charter as imposing on States a positive obligation to ensure access to effective remedies for human rights violations, including restitution, compensation, rehabilitation, satisfaction and guarantees of non-repetition. In <i>African Commission on Human and Peoples' Rights v. Republic of Kenya (the Ogiek case)</i> , Application 006/2012 (Reparations Judgment, 2022), the African Court on Human and People's Rights affirmed these obligations and ordered the Government of Kenya to adopt measures aimed at restoring the Ogiek peoples' rights including restitution of their ancestral lands where feasible, recognition of their legal and cultural identity and the payment of adequate reparations for the material and moral harm suffered.
The Protocol to the African Charter on the Rights of Women in Africa (Maputo Protocol)	Article 4(2) obliges State Parties to adopt appropriate and effective measures to ensure that women who are victims of violence have meaningful access to justice including timely, accessible and gender responsive judicial and administrative mechanisms as well as adequate, effective and transformative reparations. Article 25(1) further requires States to guarantee women survivors of sexual violence access to prompt, effective and comprehensive redress including restitution, compensation, rehabilitation satisfaction and guarantees of non-repetition consistent with international human rights standards and a victim-centered approach.

International Soft Law Instruments

International soft law instruments comprise non-binding normative frameworks adopted through intergovernmental processes including through resolutions, declarations, principles, guidelines and codes of conduct. While not legally enforceable, they articulate emerging standards of conduct applicable to arrange of duty bearers and stakeholders including States, business entities, international organisations, and individuals.

Within the international human rights system, such instruments play a critical role in the progressive development and clarification of normative standards, often informing the interpretation of binding treaty obligations and customary international law. They contribute to the consolidation of international consensus on human rights principles and serve as persuasive authority in domestic and international adjudicatory and policy-making processes.

Soft Law Instrument	Relevant Articles and Provisions
Universal Declaration of Human Rights	Article 8 of the Declaration affirms that everyone has the right to an effective remedy by the competent national tribunals for acts violating the fundamental rights granted by the constitution or by law.
The United Nations Basic Principles and Guidelines on the Right to a Remedy and Reparation	Adopted by the UN General Assembly in Resolution 60/147 of 16 December 2005, the Basic Principles constitute the primary international framework governing reparations. They define five forms of reparation that must be provided to victims: (i) <i>Restitution</i>, comprising measures designed to restore the victim to their situation prior to the violation, including restoration of liberty, enjoyment of human rights, identity, family life, citizenship, return to place of residence, and restoration of employment; (ii) <i>Compensation</i>, comprising monetary provision for damage suffered, including physical or mental harm, lost opportunities, material damages, and costs for legal or expert assistance; (iii) <i>Rehabilitation</i>, encompassing medical and psychological care, as well as legal and social services; (iv) <i>Satisfaction</i>, including measures aimed at cessation of continuing violations, verification of facts and full public disclosure of the truth, searches for disappeared persons, official declarations restoring dignity and rights, public apologies, judicial sanctions against perpetrators, commemorations and tributes to victims, and the inclusion of accurate accounts in educational materials; and (v) <i>Guarantees of Non-Repetition</i>, including institutional reforms covering civilian control of military and security forces, strengthening of judicial independence, protection of human rights defenders, and human rights training for law enforcement and military personnel. <i>Principle 11</i> emphasizes that remedies should be readily accessible and that States should provide adequate assistance to victims seeking remedies. <i>Principle 12</i> requires that restitution be provided wherever possible, with compensation only being provided where restitution is not possible. <i>Principle 15</i> establishes that where a person or entity is found liable for reparation, such party should provide reparation to the victim or compensate the State if the State has already provided reparation. The Truth, Justice and Reconciliation Commission specifically recommended that the State adhere to these Basic Principles and Guidelines.⁷

⁷ See page 123, TJRC Report, Volume 4

Soft Law Instrument	Relevant Articles and Provisions
The United Nations Declaration on Human Rights Defenders	The Declaration recognises the rights of individuals and organisations to promote and protect human rights. Article 9 provides that everyone has the right, individually and in association with others, to benefit from an effective remedy and to be protected in the event of the violation of those rights. It further requires that any complaint of violations be reviewed promptly before an independent and impartial authority, and that victims obtain from such authority a decision providing redress, including any compensation due, where there has been a violation of rights or freedoms, as well as enforcement of the eventual decision and award, all without undue delay.
The United Nations Guiding Principles on Business and Human Rights	<i>Principle 25</i> underscores the State's duty to protect against business-related human rights abuse, and obliges the State to take appropriate steps, through judicial, administrative, legislative, or other appropriate means, to ensure that when such abuses occur within their territory or jurisdiction, those affected have access to effective remedy.

2.3 National Legal Framework

Kenya's normative and institutional framework for the protection of human rights and the provision of reparations is firmly grounded in the Constitution, complemented by domestic legislation, and developed through judicial interpretation and jurisprudence. This framework collectively imposes binding obligations on the State to respect, protect, promote, and fulfil human rights, and to ensure the availability of effective, accessible, and adequate remedies for all violations.

2.3.1 The Constitution

The Constitution enshrines a comprehensive Bill of Rights and establishes constitutionally independent institutions mandated to protect, promote and uphold human rights and fundamental freedoms. Within this normative framework, certain provisions are of direct relevance to the right to an effective remedy and reparations for victims of human rights violations. The provisions are outlined in the table below.

Article	Provision
Article 10	Affirms the National Values and Principles of Governance, including the rule of law, inherent human dignity, equity, social justice, and the respect, protection, promotion and fulfilment of human rights and fundamental freedoms. These constitutional values and principles bind all State organs and all persons and serve as normative standards guiding public decision making, accountability and the exercise of public authority in accordance with constitutionalism and international human rights obligations.
Article 19(3)	Affirms that the rights and fundamental freedoms enshrined in the Bill of Rights are inherent and inalienable, vesting in every individual by virtue of their humanity and are not conferred by the State, which bears the duty to respect, protect, promote and fulfil them.

Article	Provision
Article 21(1)	Establishes a binding constitutional obligation on the State and every State organ to; respect, protect, promote, and fulfil the rights and fundamental freedoms in the Bill of Rights in accordance with applicable constitutional and international human rights standards.
Article 22	Affirms the right of every person to institute judicial proceedings alleging that a right or fundamental freedom in the Bill of Rights has been denied, violated, or infringed or threatened and to seek effective redress before a competent, independent, and impartial Court or Tribunal in accordance with due process of law.
Article 23	Affirms the jurisdiction and authority of Courts to uphold, interpret and enforce the Bill of Rights and to provide effective judicial protection and remedies for violations in accordance with the Constitution including compensation.
Article 25	Affirms the existence of non derogable human rights that are not subject to limitation or restriction under any circumstances including the absolute prohibition of torture and other cruel, inhuman or degrading treatment or punishment, the prohibition of slavery and servitude, and the right to a fair trial before a competent, independent and impartial tribunal established by law.
Article 47	Guarantees every person the right to administrative action that is prompt, efficient, lawful, reasonable, and procedurally fair. It embodies the principles of legality, transparency, accountability, and due process.
Article 48	Imposes on the State the obligation to guarantee effective and equal access to justice for all persons, consistent with the principles of equality before the law and non-discrimination. It further requires that where any fee or charges are applicable, such costs must be reasonable, proportionate and must not operate as a barrier to the enjoyment or exercise of the right of access to justice.

2.3.2 Legislation

The legislative frameworks outlined below establish binding obligations on designated constitutional and statutory bodies to take effective measures to ensure access to appropriate effective and timely remedies for victims of human rights violations in accordance with constitutional guarantees and international human rights standards.

Legislation	Relevant Provision
The Kenya National Commission on Human Rights Act, Cap. 7I	Section 8 of the Act vests the Commission with a broad human rights mandate grounded in the principles of protection promotion and enforcement of fundamental rights and freedoms. This includes the obligations of monitoring, investigating, and reporting on State's compliance with its human rights obligations; to receiving, inquiring investigating allegations of human rights violations and taking steps to secure appropriate and effective remedies and redress for victims consistent with the right to an effective remedy. The Commission is further designated as the principal State organ responsible for overseeing and promoting compliance with Kenya's human rights obligations. Section 53 operationalizes this mandate by establishing a structured complaints-handling mechanism and conferring investigative powers necessary for the effective discharge of the Commissions' <i>quasi-judicial</i> functions. These provisions collectively reinforce the Commissions role in ensuring accountability, access to justice, and the realization of victim-centered remedies in accordance with constitutional and international human rights standards.
The Commission on Administrative Justice Act, Cap. 7J	Section 8 mandates the Commission to investigate complaints relating to maladministration by public officers and, where appropriate, to recommend compensation or other remedies.
The National Gender and Equality Commission Act, Cap. 7K	The Commission's mandate under Section 8 encompasses the investigation of complaints of violations of the principle of equality and freedom from discrimination, including gender-based violations, and the making of appropriate recommendations for remedy.
The Independent Policing Oversight Authority Act, Cap. 86	The Independent Policing Oversight Authority is mandated to investigate complaints against members of the National Police Service relating to discipline and criminal offences, and to make recommendations for prosecution, compensation, internal disciplinary action, or other appropriate relief. IPOA's role is central both to accountability for protest-related violations and supervision of public order management regulations as interpreted in <i>Dorcas Akinyi Oluoch, Robert Ouko Adongo and 27 Others v Amnesty International, Inspector General of the National Police Service and 6 Others</i> , High Court (Kisumu), Petition E015 of 2024.
The Victim Protection Act, Cap. 79A	The Act mandates the Victim Protection Board to take steps toward the rehabilitation of victims of crime, providing a statutory framework for victim-centered protections that complements the proposed reparations programme.

Legislation	Relevant Provision
The Office of the Director of Public Prosecutions Act, Cap. 6B	The Act operationalizes the Office of the Director of Public Prosecutions, which has the mandate to initiate and undertake criminal proceedings in respect of any offences. The ODPP's role is particularly relevant to the accountability pillar of the proposed framework, in relation to the prosecution of individuals responsible for the violations documented.

The Prevention of Torture Act, Cap. 88

Section 17 expressly provides for adequate reparations for victims, including restitution, compensation, and rehabilitation, making it one of the few domestic statutes that prescribes reparations beyond compensation and across multiple pillars of the framework.

2.3.3 Case Law

The judicial decisions set out below, drawn from both the Kenyan constitutional order and the broader African regional human rights systems, affirms the State's responsibilities for the categories of human rights violations documented in this Report and underscores the competence of Courts and quasi-judicial bodies to grant comprehensive reparations. These authorities serve a dual normative function: first, they demonstrate established judicial and quasi-judicial recognition of State accountability, which the proposed framework seeks to complement and build upon; systematize and operationalize in a coherent manner, and second, they provide comparative jurisprudential benchmarks on quantum that inform the development of a principled and context sensitive schedule for reparative awards.

Case	Court Decision
Onunga v Inspector General of the National Police Service and Another; Independent Policing Oversight Authority and Another (Interested Parties), Constitutional Petition E002 of 2023 [2024] KEHC 9836 (KLR), High Court of Kenya, 8 August 2024	The petitioner, a civilian, sustained a gunshot wound to the left side of his face during a security operation in which he had not been participating in any unlawful activity. The High Court found that his constitutional rights had been violated and awarded Kshs. 2,000,000 as general damages for pain, suffering, and constitutional rights violations. The case establishes that excessive use of force by security personnel during operations, resulting in physical injury to a civilian, constitutes a justiciable constitutional violation attracting compensatory damages.

Case	Court Decision
Dorcas Akinyi Oluoch, Robert Ouko Adongo and 27 Others v Amnesty International, Inspector General of the National Police Service and 6 Others, High Court of Kenya at Kisumu, Petition E015 of 2024	The petitioners sustained violations of multiple constitutional rights during security operations associated with public demonstrations. The High Court found that the National Police Service and the Inspector General had, through their acts and omissions, violated the petitioners' rights to life, equal protection of the law, freedom and security of the person, human dignity, the right to demonstrate peaceably and unarmed under Article 37, privacy, fair hearing, fair administrative action, and the protection of the child. The Court further observed a structural disconnect between the conduct of National Police Service officers in public order management and the safeguards required under Article 244 of the Constitution. In granting reparative relief, the Court issued a structural interdict requiring the development and publication of public order management regulations governing the handling of demonstrations, picketing, and the use of force, to be developed under the supervision of the Commission and IPOA.

Coalition for Women Against Violence (COVAW) and Others v Attorney General and Others [2020] eKLR, High Court of Kenya	The petitioners were survivors of sexual and gender-based violence. In awarding compensation, the Court adopted the quantum established in W.J. and Another v Astarikoh Henry Amkoah and 9 Others [2015] eKLR as the appropriate guide for sexual violation cases and determined that an award of Kshs. 4,000,000 constituted adequate recompense for the harm suffered.
Munyeri and 2 Others v Attorney General and 3 Others; Mutua and 20 Others (Interested Parties) [2025] KEHC 18266 (KLR), High Court of Kenya	The High Court affirmed the State's obligation to provide reparations to victims of human rights violations, grounding that obligation in both the Constitution and Kenya's international law commitments. The Presidential Proclamation requiring the Commission to develop the proposed framework is issued in compliance to this decision.
African Commission on Human and Peoples' Rights v Republic of Kenya (The Ogiek Case), Application 006/2012, African Court on Human and Peoples' Rights, Reparations Judgment, 2022	The African Court found that Kenya had violated the rights of the Ogiek community under the African Charter and, in its 2022 reparations judgment, ordered a combination of individual and collective reparations including symbolic measures, restitution, and compensation. This case is the leading African regional precedent for collective reparations and is particularly relevant to the community-level reparations provisions of the framework, which contemplates reparations applicable at both individual and collective levels in accordance with the scale and communal character of certain violations documented in this Report.

CHAPTER THREE

DEVELOPMENT OF THE REPARATIONS GUIDELINES

3.1 Introduction

A reparations framework derives its credibility from the integrity, inclusivity and transparent nature of its development. In this regard legitimacy is not solely a function of institutional mandate or formal authority, it is grounded in adherence to participatory, evidence based and victim centered methodologies that meaningfully reflect the lived experiences, needs and expectations of rights holders affected by violations.

The development of Kenya's Reparations Framework gives effect to the State's obligations under international and regional human rights law, including the UN Basic Principles and Guidelines on the Right to a Remedy and Reparation (2005), the African Charter on Human and Peoples' Rights, and the relevant provisions of the Constitution. These instruments collectively affirm the right of victims of gross violations of human rights and serious violations of international humanitarian law to effective remedies, including access to justice, truth, reparation, and guarantees of non-repetition. Within this normative framework, the Commission, pursuant to its constitutional and statutory mandate, is appropriately positioned as the anchor institution for this process. The Commission discharged this responsibility through a structured, five-phase methodology anchored in principles of participation, accountability and human dignity. This approach was designed to ensure that the resulting framework is not only legally and normatively sound, but is also victim-centered, context responsive and capable of supporting effective, equitable and sustainable implementation of reparative measures.

3.2 Conceptualization of the Reparations Framework

The Commission formally commenced the development of the Reparations Framework pursuant to Presidential Proclamation No. 1 of 2026 through an initial phase of undertaking a preliminary assessment of Kenya's transitional justice landscape, drawing on the findings of the Truth, Justice and Reconciliation Commission, the recommendations of the Waki Commission, and the broader corpus of unresolved accountability obligations arising from documented patterns of historical injustice.

The outcome of this phase was the development of a conceptual framework setting out the legal basis for reparations, the categories of victims and violations to be addressed, and the proposed institutional and procedural architecture of the Reparations Framework. In furtherance of this work, the Commission constituted a multidisciplinary Technical Team to

undertake the drafting and consultative processes, and developed Terms of Reference defining the team's composition and scope of the assignment.

3.3 Stakeholders Consultation

Prior to the drafting phase, the Technical Team undertook structured and inclusive consultations in fulfilment of the participatory governance requirements under Article 10 of the Constitution. The stakeholders engaged include victims and their representatives, survivors' network organisations, civil society organisations, reparations and transitional justice experts, representatives of marginalised and historically marginalised communities, constitutional commissions, independent offices, as well as relevant government ministries and agencies. These consultations were not undertaken as a procedural formality but as a substantive and iterative component of the framework's design. They were intended to ensure that the lived experiences, priorities and perspectives of directly affected persons meaningfully informed the conceptualisation and development of the framework from its inception.

3.4 Drafting the Reparation Framework

Building on the outcomes of the consultations, the Technical Team developed the zero draft of the Reparations Framework. The draft articulated the definitional and normative scope of the framework and set out the five internationally recognized forms of reparation - *restitution, compensation, rehabilitation, satisfaction, and guarantees of non-repetition*. It further proposed institutional arrangement for the administrative of the program as well as a procedural framework governing victims and award determination. In parallel, the Technical Team undertook a comprehensive stakeholder mapping exercise to identify victims, victims and survivors' networks communities, civil society organisations, relevant government agencies, and development partners whose sustained engagement is critical to the legitimacy, inclusivity and effective implementation of the program.

3.5 Public Participation

The Commission subjected the draft to a formal public participation process in line with Article 10 of the Constitution of Kenya, and received submissions through oral presentation written memoranda, and contributions submitted through its digital platforms. A structured feedback matrix was developed to document each submission and the Commission's corresponding response to the feedback received.

3.6 Publication and Publicization

Following the completion of the drafting phase, the Framework will be published on and publicized in line with Article 254(2) of the Constitution and the Presidential Proclamation.

CHAPTER FOUR

COMPLAINTS/CLAIMS PROCESSING AND VICTIM IDENTIFICATION

4.1 Introduction

The Kenya National Commission on Human Rights derives its constitutional and statutory mandate to receive, investigate, and address complaints of human rights violations from Article 59 of the Constitution and Section 8(d) of the Kenya National Commission on Human Rights Act, Cap. 71. In the discharge of this mandate, the Commission functions as a primary national institutional through which victims may seek recognition of violations, systemic documentation of harm, and appropriate redress.

This Chapter outlines the processes undertaken by the Commission to document complaints, identify victims, and verify claims for purposes of inclusion within the proposed reparations framework. It reflects both the breadth of reported violations over time and the structured methodology adopted to ensure that the resulting dataset is credible, consistent, and sufficiently robust to underpin a national reparations programme.

The documentation exercise was not limited to a specific period but built upon an evolving evidentiary record developed over a decade, further strengthened through intensified monitoring, targeted outreach, and a nationwide call for submissions. Through this approach, the Commission sought to address historical gaps in reporting, broaden access for affected populations, and ensure that victims across diverse geographic and socio-economic contexts were able to participate in and be included within the process.

4.2 Documentation: Scope and Process

The Commission's documentation of victims of human rights violations predates the Proclamation and forms part of its continuing constitutional and statutory mandate to receive, investigate, and redress complaints of human rights violations. Through its Complaints Management System, the Commission received, processed and documented complaints arising from public demonstrations and other human rights violations since its inception.

The documentation process was undertaken through four interrelated and overlapping streams.

The Commission conducted a structured review of existing complaints in the Commission's database from 2009 onwards, covering cases of police violence, enforced disappearances, torture unlawful killings and other gross human rights violations.

The Commission undertook active field monitoring during the 2023, 2024, 2025 and 2026 protest periods, including the deployment of rapid response teams to document deaths, injuries, and abductions in real time.

The Commission engaged in collaborative outreach with human rights organisations, medical institutions, legal aid providers, and other civil society actors to identify victims who had not directly lodged complaints directly with the Commission thereby ensuring broader inclusion and reducing barriers to access to justice.

On 13th March, 2026, the Commission issued a public call inviting victims of human rights violations to submit claims for considerations under the reparations process with an initial submission deadline of 3rd April, 2026.

The public notice was disseminated through the Commission's official website and social media platforms, direct outreach to victim communities through human rights defenders and community-based organisations, and engagement with media houses for broadcast over radio and television. The victims were asked to submit available supporting documentation, including medical reports (P3 forms and post mortem), occurrence book entries, witness statements, and any other relevant records. Beyond the public call, the Commission continues to receive and process complaints in fulfilment of its mandate to promote, protect, and secure effective remedies for victims of human rights violations.

4.3 Verification Process

The claims received by the Commission continue to be subjected to a structured verification process to ensure the integrity, credibility and reliability of claims included in the list submitted to His Excellency, the President of the Republic of Kenya. The process was grounded in documentary review, corroboration, and evidentiary assessment consistent with principles of accountability, fairness and victim centered justice.

Verification involved the systematic collection and assessment of available documentation, medical records, police Occurrence Book entries (OB), witness statements, and, photographic and video evidence. These materials were examined to establish the factual basis of each claim and to determine its eligibility within the reparation's guidelines.

The verification was undertaken in four principal phases:

1. Initial screening to assess completeness relevance and eligibility;
2. Confirmation of the identity of the claimant;
3. Corroboration of the alleged violation through cross-referencing with Commission records and external sources; and
4. Classification of verified claims within the established categories of violations.

Each verified claim was assigned a unique reference number or identifier to facilitate tracking and case management and future administrative action where necessary.

In assessing claims, the Commission applied the “*reasonable basis to believe*” standard of proof, ensuring consistency and procedural fairness while recognizing the evidentiary limitations that frequently confront victims of human rights violations particularly in cases involving unlawful deaths, enforced disappearances, torture, and violations arising from public demonstrations.

The Commission undertook the verification process under significant resource constraints (time and financial), which limited the extent of independent field verifications. Notwithstanding these challenges, the methodology adopted was designed to uphold both evidentiary rigor and inclusivity ensuring that victims were not excluded solely on account of the practical barriers often associated with documenting serious human rights violations.

4.4 Findings by Category of Violation

The Commission’s findings, based on verified complaints as at 30th April, 2026, disclose a consistent and recurrent pattern of human rights violations across multiple categories. The most prevalent violations concern the freedom and security of the person, sexual violence, right to life, property and enforced disappearances. Most of the violations occurred in the context of the right to peaceful assembly, manifested by unlawful deaths, excessive use of force, arbitrary arrests and abductions, and the suppression of peaceful demonstrations.

In addition, violations of economic and social rights, particularly the right to property and the right to health and livelihood, were recorded through the destruction of property, loss of livelihoods, displacement and the denial of access to timely and adequate medical care.

As at April 2026, the Commission has compiled and verified a total of **1101** victims, who gave their consent for inclusion in the provisional list of victims. The violations are categorized as follows:

No.	Category of Violation	No. of Victims
1.	Right to Life	245
2.	Aggravated Sexual Violence (gang rape)	32
	Rape, defilement and sodomy	43
3.	Freedom from Torture	135
4.	Freedom and Security of the Person:	
	Moderate injury	473
	Minor injury	0
5.	Right to Property	138
6.	Enforced Disappearance	35
		1101

The figures above reflect only verified complaints received and assessed by the Commission. Notably that the actual number of victims is likely substantially higher, as many affected persons remain undocumented due to limited awareness of available redress mechanisms, stigma fear of reprisal, and or barriers to access.

A consolidated register of verified victims, is submitted to the President of the Republic of Kenya alongside this report.

Collectively, these findings reveal not isolated or incidental violations but recurring patterns that point to systemic deficiencies in the protection, promotion and enforcement of constitutional rights and fundamental freedoms. They underscore the urgent need for a comprehensive and victim-centered reparations framework, anchored in accountability, institutional reform and guarantees of non-recurrence.

CHAPTER FIVE

RECOMMENDATIONS, CHALLENGES AND CONCLUSION

5.1 Introduction

The State bears a constitutional and non-derogable obligation to respect, protect, promote, and fulfil the rights and fundamental freedoms enshrined in the Bill of Rights. Where violations occur, this duty extends to ensuring that victims have access to effective, adequate prompt, and enforceable remedies. The right to reparation is not discretionary but a binding legal obligation anchored in the Constitution of Kenya and reinforced by the State's regional and international human rights obligations.

This Report is the outcome of a comprehensive process involving legal analysis, stakeholder consultations, victim documentation, and a comparative review of international and regional best practices. It reflects both the breadth and gravity of violations documented and the systemic, structural institutional barriers that have historically hindered victims' access to justice, truth, and redress.

In light of these findings, the Commission makes the following recommendations to establish a coherent, principled, and operational framework for reparations. These recommendations are intended not only to provide redress for past harm, but also to advance accountability, restore the dignity of victims, and guarantee non recurrence through sustained institutional, policy and legislative reform.

5.2 Recommendations

1. Immediate support to victims of human rights violations including victims from demonstrations and public protests through an administrative process underpinned by the reparations guidelines pending the enactment of policy and legal framework

The Commission notes that the formulation, review, and enactment of legislation and policy frameworks are often lengthy processes that may delay timely access to justice and redress for victims. In recognition of the urgent needs of victims of human rights violations, many of whom continue to endure physical, psychological, social, and economic hardship, the Commission recommends the immediate provision of assistance and reparative measures through an administrative process pending the adoption of relevant laws and policies. Such an interim mechanism would ensure that victims are not left without remedy while formal legislative and policy processes are underway, and would

demonstrate the State's commitment to accountability, restorative justice, and the protection of human dignity.

2. Recommendation on Satisfaction

The Commission makes the following recommendations; -

- (a) A formal public apology to victims of human rights violations, expressly acknowledging State responsibility for the harm documented in this Report. The apology should be accompanied by a publicly articulated guarantee of non-repetition, reflecting a commitment to implement the legislative, institutional, and policy reforms recommended herein.
- (b) The Government to consider developing and publishing a time-bound implementation framework to ensure compliance with all outstanding decisions, judgments and, orders issued against the Government of Kenya by domestic courts and regional human rights mechanisms and ensure prompt and full compliance.

3. Recommendations on Compensation

The Commission makes the following recommendations on compensation for human rights violations through the following proposed assessment criteria to determine the quantum of damages:

- ➔ **The nature** of the specific violation.
- ➔ **The duration** over which the alleged violation occurred.
- ➔ **The direct impact** and harm suffered by the victim.
- ➔ **Broader implications**, including the necessity to deter future violations, uphold the rule of law, and ensure constitutional compliance by public and private entities.

Nature of Violation	Specific Classification	Quantum of Damages (Monetary)
Right to Life	Fatal shootings, death in custody, or during demonstrations	Minimum Kshs 2,500,000 plus medical expenses
Freedom and Security of the Person	Enforced Disappearances	Minimum Kshs 1,500,000 plus medical expenses
	Severe Physical Injury	Minimum Kshs 1,000,000 plus medical expenses
	Moderate Physical Injury	Minimum Kshs 500,000 plus medical expenses
	Minor Physical Injury	Minimum Kshs 50,000 plus medical expenses
	Arbitrary arrest and detention	Minimum Kshs 50,000
Freedom from Torture	Torture	Minimum Kshs 2,000,000 plus medical expenses

Nature of Violation	Specific Classification	Quantum of Damages (Monetary)
Sexual Violence	Aggravated Sexual Violence	Minimum Kshs 2,000,000 plus medical expenses
	Rape, defilement and sexual assault	Minimum Kshs 750,000 plus medical expenses
Right to Property	Loss of business	Kshs 100,000

4. Recommendations on Rehabilitation

The Commission makes the following recommendations; -

- (a) Social health benefits for victims to support continued medical care, psychosocial support and trauma counselling. Special attention should be given to survivors of torture, enforced disappearances, unlawful detention, sexual and gender-based violence, and victims who have suffered permanent physical or psychological harm.
- (b) Consideration of educational and livelihood support for victims.

5. Recommendations on Restitution

The Commission makes the following recommendations

- (a) Restoration of property, reinstatement of employment, restoration of identity documents, return to places of habitual residence, and restoration of access to education, health care, and livelihoods where these were unlawfully disrupted.

6. Recommendations for Guarantees of Non-Repetition

The Commission makes the following recommendations; -

A. Development of a National Reparations Policy

The Commission recommends the formulation and adoption of a National Reparations Policy to provide an overarching framework on reparations. The Policy should:

- (a) Define the scope, purpose and guiding objectives of the national reparations programme, including its complementary relationship with other transitional justice measures such as criminal accountability, truth-seeking initiatives, memorialization institutional reform, and guarantees of non-recurrence;
- (b) Determine the categories of human right violations eligible for reparations including violations committed during the colonial period, the post-independence

era, and violations arising from demonstrations and public protests as documented in this Report;

- (c) Establish clear and transparent eligibility criteria for victims, guided by a presumption in favor of persons whose violations have been documented by the Truth, Justice and Reconciliation Commission, the Commission herein, and other reports of state organs;
- (d) Establish a framework for the assessment and determination of compensation awards, taking into account the gravity and nature of the violation, the individual circumstances and harm suffered by the victim, and relevant comparative jurisprudence and reparations standards;
- (e) Establish clear institutional arrangements for implementation, including the designation of lead agencies, interagency coordination mechanisms, and robust monitoring evaluation and accountability frameworks; and
- (f) Ensure meaningful public participation in the design, implementation and monitoring of the reparations programme.

B. Enactment of Comprehensive Reparations Legislation

The Commission recommends the urgent enactment of a comprehensive Reparations Act to establish a permanent legal framework governing the administration of reparations to victims of human rights violations.

C. Establishment of a Reparations Fund

The Act should establish a permanent, ring-fenced Reparations Fund to be administered by an independent Institution. The Fund should be financed through annual appropriation from the National Treasury, supplemented by donations, grants, and other sources. The establishment of a dedicated Fund is necessary to ensuring sustainable, predictable, adequate financing for reparations.^{5.4} Accountability, Legislative Reform, and Guarantees of Non-Repetition.

D. Legal Reforms

The Reparations Framework cannot be implemented in isolation. In the absence of substantive structural reform and credible accountability mechanisms, any reparations programme risks functioning as an *ad hoc* intervention rather than an instrument of sustainable transformation. The recommendations set out below address the institutional, legislative, and accountability imperatives that are essential to safeguarding

the integrity, effectiveness and sustainability of the framework.

- (a) Parliament should enact a comprehensive legislation operationalizing the exercise of rights under Article 37 of the Constitution.
- (b) The Public Order Act, Cap. 56, should be reviewed and amended to bring it into full conformity with the Constitution and Kenya's international human rights obligations.
- (c) Parliament should enact comprehensive legislation for the protection of human rights defenders, establishing clear legal safeguards against harassment, arbitrary arrest, and other forms of reprisal.
- (d) Parliament should enact national legislation on the protection of all persons from enforced disappearance, and
- (e) Kenya should ratify the International Convention for the Protection of All Persons from Enforced Disappearance.

E. Accountability and Access to Justice

- (a) All investigative agencies, including the National Police Service, the Independent Policing Oversight Authority should prioritize and urgently finalize investigations into all reported cases of police violations committed against members of the public during protests, in order to enhance accountability and access to justice for affected individuals and families.
- (b) The Inspector General of Police should ensure that members of the National Police Service report every instance of use of lethal force to the Independent Policing Oversight Authority, to enhance accountability for the use of lethal force.
- (c) The Office of the Director of Public Prosecutions should consider fast tracking the prosecution of law enforcement officers who participated in perpetrating human rights violations against civilians during public protests.
- (d) The Office of the Director of Public Prosecutions should consider review and, where appropriate, terminate all ongoing criminal proceedings against human rights defenders and protesters arrested and charged in circumstances arising from the lawful exercise of rights under Article 37 of the Constitution.

5.3 Challenges

The development of this Report and Framework encountered notable challenges that affected both the scope and pace of the process. *First*, the lack of dedicated

budgetary allocation significantly constrained the ability to undertake comprehensive consultations, field verifications, stakeholder engagements, and technical validation processes necessary for a robust and inclusive framework. Adequate financial resources are essential to support research, documentation, victim outreach, expert input, and institutional coordination, all of which are critical in ensuring the credibility and effectiveness of a reparation's framework. The absence of sufficient funding, therefore, limited the extent to which these activities could be fully executed.

Secondly, the development process was undertaken within strict time constraints, which posed a challenge to the depth of analysis and the breadth of consultations required for such a sensitive and nationally significant undertaking. Reparations and compensation frameworks demand careful consideration of legal, policy, historical, and human rights dimensions, as well as meaningful engagement with victims, survivors, and relevant institutions. The limited timeframe available restricted opportunities for extensive stakeholder participation and thorough review, thereby placing pressure on the process of producing a comprehensive and fully validated report. Despite these constraints, significant efforts were made to ensure that the framework remained responsive, practical, and aligned with the urgent need to provide redress to victims of human rights violations.

The Commission makes the following recommendations

1. Institutional strengthening of the Kenya National Commission on Human Rights through adequate resourcing.
2. Strengthening of other oversight bodies including IPOA.

5.4 Conclusion

This Report reaffirms that it is the legal obligation of the State - anchored as a foundational pillar of justice, accountability, and the rule of law - to protect, promote, and fulfil the rights of all persons in Kenya.

The Reparations Framework presented herein offers a clear, practical and implementable pathway for the discharge of this constitutional and international obligation. Its effectiveness and success, however, will be contingent upon its prompt, guaranteed, and comprehensive implementation.

The Commission urges the Executive and Parliament to act with urgency and in fidelity to constitutional values in adopting and operationalizing these recommendations. The continued delay in addressing the harm endured by victims serves only to perpetuate injustice and erode public confidence in State institutions.

The Commission reaffirms its constitutional mandate and its unwavering commitment to supporting the implementation, monitoring and oversight of this framework, in fulfilment of its duty to ensure that human rights are respected, protected, and realized for all.

ANNEXURES

1. Annex A: Kenya National Commission on Human Rights' Reparations Guidelines, 2026

ARRANGEMENT OF CLAUSES

PART I – PRELIMINARY

1. Citation
2. Interpretation
3. Objects and Purpose
4. Scope of Application
5. Guiding Principles

PART II - REGISTRATION AND VERIFICATION OF CLAIMS

6. Eligibility for Reparations
7. Sources of Claims
8. Who can Lodge a Claim?
9. Standard of Proof
10. Verification Process and Determination
11. Communication on Eligibility
12. Grounds for Disqualification

PART III - REPARATIONS

13. Reparations
14. Satisfaction
15. Restitution
16. Rehabilitation
17. Guarantees of non-Repetition
18. Compensation

PART IV - REVIEW

19. Review Procedure

PART V - REPORTS AND RECORDS

20. Progress Reports
21. Maintenance of Records
22. Disclosure of Information
23. Accounts and Audit
24. Monitoring and Evaluation

PART I – PRELIMINARY

Citation	1. These Guidelines may be cited as the Kenya National Commission on Human Rights Reparations Guidelines, 2026.
Interpretation	2. In these Guidelines unless the context otherwise requires, “Claimant” means a person who lodges a claim to any state agency alleging human rights violations; “Collective or group harm” refers to harm suffered by communities or groups of people as a result of systemic patterns of violations. “Collective reparations” means reparations for collective or group harm; “Commission” means the Kenya National Commission on Human Rights established under Section 3 of the Kenya National Commission on Human Rights Act Cap 7I; “Enforced disappearance” means the arrest, detention, abduction or any other form of deprivation of liberty by agents of the State or by persons or groups of persons acting with the authorization, support or acquiescence of the State, followed by a refusal to acknowledge the deprivation of liberty or by concealment of the fate or whereabouts of the disappeared person, which place such a person outside the protection of the law; “Human rights” means the fundamental rights and freedoms protected under the Constitution, and the Laws of Kenya; “Implementing agency” for the purposes of these Guidelines shall be an administrative government mechanism or the Kenyan National Commission on Human Rights or any other state agency designated or responsible for managing, executing or supervising reparations; “Moral harm” means non-material or non-pecuniary losses including pain, suffering, humiliation, or loss of reputation suffered by victims; “Personal data” has the same meaning as defined under the Data Protection Act 2019; “Public officer” has the same meaning assigned to it under Article 260 of the Constitution; “Reasonable accommodation” has the same meaning as assigned to it under the Persons with Disabilities Act, 2025 “Reasonable basis to believe” means a low evidentiary threshold that deems a claim valid if it is credible and aligns with the known facts of a violation, even in the absence of formal documentary proof; “Reparations” means any measure or combination of measures intended to restore a victim to the condition obtaining prior to a human rights violation or where full restoration is not possible, to address the consequences of the violations through: (a) “Compensation” monetary or financial award to a victim;

	(b) "Guarantees of non-repetition" by implementing broad structural and policy actions meant to prevent the re-occurrence of human rights violations; (c) "Rehabilitation" which entails the provision of medical, psychological, legal, and social services intended to restore a victim's dignity and ability to function within society after a violation of human rights; (d) "Restitution" by implementing measures to restore a victim or group of victims to a situation close to the one they were in before the violations of their Human Rights occurred; (e) "Satisfaction" which includes a broad range of measures such as truth seeking, the search for the disappeared, the recovery and reburial of remains, public apologies, judicial and administrative sanctions, commemoration, memorialization, archiving and human rights training; "State agency" includes a commission, independent office, agency or other body established under the Constitution or any other written law; "State organ" has the same meaning assigned to it under Article 260 of the Constitution; "Verification" means the process of checking, confirming and validating claims for reparations under these Guidelines; and "Victim" means a person who has suffered direct, indirect or collective harm. Direct victims include those who have suffered physical or mental injury, emotional suffering, economic loss or substantial impairment of their human rights. Indirect victims are dependents or beneficiaries who have suffered as a consequence of harm to the direct victim.
Objects and Purposes	3. The objects and purpose of these Guidelines are to provide- (a) a framework for the identification, registration, and verification of claims for reparations; (b) a framework for adequate, effective and prompt reparations for victims of human rights violations; (c) a mechanism for monitoring and evaluation of reparations programmes.
Scope of Application	4. These Guidelines apply to gross, systemic or widespread human rights violations attributable to the State.
Guiding Principles	5. Implementation of these Guidelines shall be guided by the National Values and Principles of Governance under Article 10 of the Constitution and the Basic Principles and Guidelines on the Right to a Remedy and Reparation for Victims of Gross Violations of International Human Rights Law and Serious Violations of International Humanitarian Law and in particular the following- (a) Victim Centered Approach All processes shall ensure a victim centered approach that places the needs, dignity, and well-being of victims at the core, in line with international human rights standards. Victims shall be treated with respect and humanity, their

	views and concerns heard, and due consideration given to their circumstances, vulnerabilities and evolving needs. (b) Accessibility and Inclusivity The registration and verification processes shall be structured to guarantee accessibility, inclusivity and non-discrimination ensuring most victims -including those in remote areas, persons with disabilities, and individuals in situations of vulnerability – are able to participate effectively. Appropriate and reasonable accommodations shall be provided where necessary. (c) Non- Discrimination Victims shall be guaranteed equal access to reparations without discrimination either directly or indirectly on any ground Any distinction, exclusion based on grounds of race, sex, pregnancy, marital status, health status, ethnic or social origin, colour, age, disability, religion, conscience, belief, culture, dress, language or birth is prohibited in accordance with the Constitution of Kenya. (d) Transparency and Accountability All processes and determinations shall be conducted and communicated in an accessible and transparent manner to victims and the public. An implementing agency shall ensure full accountability for the use of public resources, equity, consistency and integrity of the outcomes. (e) Fair Administrative Action Victim(s) are entitled to access reparations that is prompt, effective, lawful, reasonable and consistent with the guarantees of due process and procedural fairness.
	(f) Do No Harm All interactions and engagements with victims shall be undertaken in a manner consistent with international human rights standards, ensuring that no further harm or re-traumatization occurs. (g) Confidentiality Confidentiality shall be safeguarded at all times in accordance with applicable data protection and victim protection standards, and heightened care shall be exercised in the collection, storage, use, and dissemination of sensitive or personal information. (h) Holistic Assessment Reparations shall be determined through a comprehensive and holistic assessment of harm, taking into account physical, psychological, social, cultural and economic dimensions of injury. (i) Proportionality

	Reparations shall be appropriate, adequate and commensurate with the harm suffered. (j) Fiscal sustainability Reparations shall be implemented in a fiscally sustainable manner consistent with the right of victims to an effective remedy. Fiscal sustainability shall require realistic costing, lawful budgetary allocations, annual appropriations, phased implementation, transparent financial management and regular public reporting. Financial constraints shall not be used to deny victims reparations but may guide lawful, reasonable, and transparent prioritization to ensure that remedies remain meaningful, achievable and capable of being sustained over time.
PART II – REGISTRATION AND VERIFICATION OF CLAIMS	
Eligibility for Reparations	6. (1) The following shall be eligible for reparations; (a) An individual or group(s) who have suffered direct physical, mental, emotional or economic harm, or impairment of fundamental rights due to violations of human rights; (b) Indirect victims who have suffered as a consequence of harm to the direct victim. (2) A victim shall be eligible for reparations regardless of whether the perpetrator of the violation is identified, apprehended, prosecuted or convicted.
Sources of Claims	7. In conducting identification and registration of claims for reparations, a State Agency shall consider; (a) The Kenya National Commission on Human Rights database; (b) Relevant State Agencies Databases and Reports; (c) Any other existing databases compiled by stakeholders and verified by relevant State Agency.
Who can Lodge a Claim?	8. (1) A person who has suffered harm may lodge a claim to any relevant State Agency for reparations under these guidelines; (2) In addition to a person acting in their own interest, a claim under clause (1) may be instituted by; (a) a person acting on behalf of another person who cannot act in their own name; (b) a person acting as a member of, or in the interest of, a group or class of persons; (c) a person acting in the public interest; (d) an association acting in the interest of one or more of its (e) members; or 9. (1) A claim may be lodged; (a) in a prescribed form and signed by the Victim or their representative; (b) orally; or (c) through official electronic means. (2) Where a claim is lodged orally, the State Agency shall reduce it into writing in the

	prescribed form, and cause it to be signed by the Victim or their representative. Requirements for Registration 10. (1) The following information shall be required; (a) the claimant's and/or victims; (i) full name(s) and contact information; (ii) age; (iii) sex; (iv) vulnerability; (v) relationship to the victim; and (vi) identification documents.
	(b) description of the claim (s); (i) the nature of the alleged violation(s); (ii) the date, time and location of the alleged violation(s); (iii) identifying details of the person(s) alleged to have committed the alleged violation(s), if known; (iv) details of any other person(s) who may have witnessed or have information regarding the alleged violation(s), including name(s) and contact information if known; (v) age of the victim; and (vi) any indirect victim(s) at the time of the alleged violation(s); (c) supporting documentation including; (i) medical reports; (ii) media reports; (iii) civil registration documents; (iv) occurrence book number (s); (v) police abstract (s); (vi) audio visual evidence; (vii) claims made to relevant public institutions; or (viii) reports from State Organs. (2) Notwithstanding the provision of clause 10 (1)(a)(vi) the absence of identification documents shall not bar a claim from being registered. (3) A State Agency may request such further information or particulars from the victim, their representative or witnesses as may be necessary. (4) A State Agency shall ensure reasonable accommodation for vulnerable persons.
Standard of Proof	11. In verification of claims, a State Agency shall adopt the reasonable basis to believe evidentiary standard.
Verification Process and Determination	12. (1) Every claim submitted under these Guidelines shall be subject to verification to determine eligibility for reparations. (2) Verification shall establish to the satisfaction of a State Agency, the truth,

	completeness, and the authenticity of the claim. (3) In the verification of claims, a State Agency shall; (a) authenticate official documents with the relevant bodies; (b) conduct witness interviews for testimonial evidence; or (c) conduct investigation (s) including site visits.
	(d) establish the consistency of the account with known patterns of violations during the relevant period; (e) evaluate corroborating evidence or accounts; (f) review medical evidence where available; (g) assess the totality of the circumstances surrounding the alleged violation. (h) After verification, a State Agency shall make a determination on eligibility.
Communication on Eligibility	13. (1) A State Agency shall communicate the determination of eligibility in writing to the claimant or their representative. (2) The determination shall consist of; (a) a statement of the nature of the violation; (b) a description of the relevant category of eligible victims; (c) a description of the registration documents and any other evidence gathered in the investigation; (d) a statement of eligibility or ineligibility and the reasons thereof; and (e) information on the claimant's right to seek review.
Grounds for Disqualification	14. A claim shall be disqualified under these Guidelines if; (a) the claim is fraudulent or based on misrepresentation of material facts; (b) it was submitted anonymously without disclosing material information; (c) the same claim has been determined by a relevant State Organ; and (d) the claimant willfully withholds information that would change the eligibility status.
PART III – REPARATIONS	
Reparations	15. (1) Eligible victim(s) shall be awarded reparations in the form of compensation, rehabilitation, restitution, satisfaction, guarantees of non-repetition or a combination of any of the reparation mechanisms, based on the category of victim and nature of the violation, as set out in the Schedule. (2) In determining appropriate individual or collective reparations, the Implementing Agency shall take into account; (a) the degree of physical or mental harm; (b) the duration and cumulative effects of the violation over time; (c) lost opportunities, including employment, education and social benefits; (d) material damages and loss of earnings, including loss of earning potential; (e) moral harm; and (f) ancillary costs. (3) In effecting reparations, the Implementing Agency shall operate independently and shall coordinate with relevant State Organs or any other person or entity, in a

	manner that ensures impartiality, professional conduct, and full compliance with human rights standards.
	(4) Upon any request by the Implementing Agency for co-operation for the purpose of implementing these Guidelines, any person or entity to whom such request is made shall render all such assistance necessary to facilitate provision of the most comprehensive reparations program possible. (5) The Implementing Agency shall prioritize victims with extreme medical conditions and vulnerable individuals or groups. (6) The Implementing Agency shall communicate the determination of reparation awarded in writing to the victim within thirty (30) days or such other reasonable time. (7) Nothing in these Guidelines shall be construed as imposing a limitation period on claims.
Satisfaction	16. The State shall consider; (a) making a comprehensive reconciliatory public apology including acknowledgment of the facts and acceptance of responsibility; (b) making official declarations upholding dignity and restoring reputation of victims; (c) in consultation with victims and/or their representatives, facilitate memorialization including symbolic recognition for victims of gross human rights violations; (d) integrating transitional justice as part of Kenya's educational curriculum; and (e) working with communities to foster reconciliation, national cohesion and integration.
Restitution	17. The State shall consider a range of measures for victims and their families including: (a) Social protection and assistance; (b) Restoration for economic losses; (c) restoration of land or property unlawfully taken in the context of the violations; and (d) economic reintegration programmes;
Rehabilitation	18. (1) The State shall consider providing; (a) comprehensive medical support to victims, survivors and their families with priority for vulnerable groups; (b) support for collective/group therapy for communities that suffered similar violations; (c) adequate funds to support community health centers, schools, or memorial sites in affected regions; (d) support social protection including economic empowerment; (e) legal aid services for appropriate claims; (f) support Technical, Vocational, Education and Training for victims and survivors; or (g) enhance equitable use of the Equalization Fund to reduce marginalization;

	(2) Rehabilitation services shall be based on periodic assessment of the victim's, survivors and their family's needs.
Guarantees of non-Repetition:	19. (1) To guarantee non-repetition, the State shall consider putting in place measures to address systemic human rights violations. (2) To ensure accountability for human rights violations, the State shall prioritize the following; (a) ensure accountability by public officers responsible for human rights violations through prompt, thorough and independent investigations and prosecution; (b) continuous security and justice sector reforms for enhanced compliance with human rights principles and standards; (c) strengthen independent oversight by adequately resourcing Constitutional Commissions and Independent Offices; (d) ensure legal and policy reforms including the ratification and domestication of relevant regional and international treaties and convention; (e) mainstream human rights across security and justice sector agencies.
Compensation	20. (1) Victims shall be awarded compensation as recommended by the Commission. (2) Compensation shall be paid to the victims or their authorized representatives. (3) In determining the compensation, the Implementing Agency may upscale the award depending on following aggravating factors; (a) age of the victim; (b) vulnerability of the victim; (c) severity and duration of the harm; or (d) ancillary costs (4) Compensation under these guidelines shall not if its own be acknowledgment of liability for use in other legal processes.
PART IV – REVIEW	
Review Procedure	21. (1) A claimant aggrieved by the decision on the eligibility or award, shall have the right of review. (2) A request for review must be submitted in writing within thirty (30) days or any such period that is reasonable upon receipt of the decision. (3) The grounds for review include; (a) the discovery of new evidence or facts; (b) an error or misinterpretation of fact; (c) procedural irregularity or unfairness in the determination process; (d) bias or conflict of interest;
	(e) failure to take into account relevant vulnerability factors; or (f) in the case of compensation; the reparations award falls below the minimum provided under Schedule 1.

	(4) A decision on the review and the reasons thereof shall be communicated in writing within thirty (30) days or any such period as is reasonable. (5) Nothing in these Guidelines shall preclude a victim or their representatives from pursuing other remedies.
PART V - REPORTS AND RECORDS	
Progress Reports	22. (1) The Implementing Agency shall prepare, submit to Parliament and the President and publicize periodic reports detailing; (a) the number of claims received; (b) the categories of victims and nature of violations for which reparations were granted; (c) form of reparations granted; and (d) reparations programmes implemented. (2) The Commission shall have oversight role on the implementation of Reparations frameworks and programmes.
Maintenance of Records	23. The Implementing Agency shall ensure that all records relating to the implementation of reparations are kept and maintained in accordance with relevant data protection and management laws.
Disclosure of Information	24. Pursuant to Article 35 of the Constitution, Access to Information Act, Data Protection Act 2019 and other relevant legislation, any person may request for information under these Guidelines.
Accounts and Audit	25. (1) The Implementing Agency shall maintain proper books and records of account of the expenditure relating to implementation of Reparations (2) All accounts relating to implementation of Reparations, shall be audited in accordance with the Public Audit Act and other relevant laws
Monitoring and Evaluation	26. The Commission shall periodically monitor and evaluate the implementation of reparations to ensure accountability and track progress in implementation.

HEAD OFFICE

1st floor CVS plaza, Lenana road

P.O Box 74359 - 00200 Nairobi, Kenya Tel: 020 3969000

Mobile: 0726 610 159

Email: haki@knchr.org X:@hakiKNCHR Facebook: KNCHR YouTube: KNCHR Website: www.knchr.org KNCHR

SMS: 22359

North Rift Office - Kitale

AFC Building, Mak Asembo Street Opposite Mega Centre Mall

P.O Box 2999 - 30200 Kitale

Telephone: 054 31773

Mobile: 0708271216 / 0786236683

Email: northrift@knchr.org X: @KNCHRKitale

North Eastern Office - Wajir

Imall Building, 2nd floor, Shallette road, Off Wajir airport road

P.O Box 363 - 70200 Wajir

Telephone 046 - 4421512/0742 023 681

Email: northernkenya@knchr.org X: @KNCHRWajir

Coast Regional Office - Mombasa

Imaara Building, 10th Floor Unit 13 Dedan Kimathi Avenue Kizingo

Opposite Pandya Memorial Hospital

P.O Box 90171 -80100 Mombasa

Telephone: 041 2220468 / 0769 710 434

Email: coast@knchr.org X: @KNCHRMombasa

Western Regional Office - Kisumu

Re Insurance Plaza, 3rd floor Oginga Odinga Street

P.O Box 7768-40100 Kisumu

Tel: 057 2020078/ 0746 425 714/ 0794 675 745

Email: kisumu@knchr.org X: @KNCHRkisumu

Central Regional Office - Laikipia

AFC Building, Adjacent to Nyahururu Law Courts

P.O Box 650 -20300 Nyahururu

Office Mobile: 0705982617 email: laikipia@knchr.org

X: @KNCHRLaikipia

Garrissa Office

IPOA House, Off Kismayu Road, Behind Hass Petrol Station Email: Garissa@knchr.org

X: KNCHRGarissa



@hakiKNCHR



KNCHR



KNCHR



complaints@knchr.org



22359



www.knchr.org



0800 720 627 Toll free



0798 849 871 WhatsApp